

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Browne	Team: Squad #05	CCRB Case #: 201504254	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 05/19/2015 8:52 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/19/2016	Precinct: 114
Date/Time CV Reported Tue, 05/19/2015 10:46 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/26/2015 2:25 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Rhea Tiwary	11551	942616	114 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Russell Kenton	26744	956794	114 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Rhea Tiwary	Force: PO Rhea Tiwary used physical force against § 87(2)(b)	A . Unsubstantiated
B . POF Rhea Tiwary	Force: PO Rhea Tiwary hit § 87(2)(b) against a wall.	B . Unfounded

Case Summary

Parts of the following incident were captured on a surveillance camera (see Board Review #1) as well as on the cell phone of witness § 87(2)(b) (see Board Review #2) inside § 87(2)(b) in Queens.

At approximately 8:50 a.m. on May 19, 2015, § 87(2)(b) was working alongside volunteers § 87(2)(b) and § 87(2)(b) inside § 87(2)(b) in Queens, when two officers from the 114th Precinct, identified as PO Rhea Tiwary and PO Russell Kenton, arrived in regards to a parking dispute she had had minutes prior with an unidentified civilian outside on the sidewalk. After questioning § 87(2)(b) about what had happened for several minutes, PO Tiwary requested her identification, so § 87(2)(b) walked back to the church office to retrieve it with both officers following closely behind. After more heated conversation and with PO Tiwary standing partially in front of the office doorway, § 87(2)(b) walked through and allegedly bumped into PO Tiwary's chest. Immediately thereafter, PO Tiwary allegedly punched or elbowed the center of § 87(2)(b)'s back and used her shoulder to propel § 87(2)(b) off balance (**Allegation A**). § 87(2)(b) reportedly stumbled but ultimately braced herself on a desk, at which point PO Tiwary handcuffed her and escorted her out the office door. However, as she did, PO Tiwary allegedly pushed § 87(2)(b) into the doorframe and adjoining glass window (**Allegation B**). § 87(2)(b) subsequently complained that she could not breathe due to her anxiety and asthma, so an ambulance was requested and she was transported to § 87(2)(b). After discussion among PO Tiwary and her superior officers, it was decided that § 87(2)(b) would receive only a summons for § 87(2)(b) which PO Tiwary issued to her at the hospital.

Mediation, Civil and Criminal Histories

- This case was investigated due to § 87(2)(b)'s refusal to mediate the complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED].
- As of August 10, 2015, no notice of claim has been filed with the City of New York regarding this incident (see Board Review #5).

Civilian and Officer CCRB Histories

- PO Tiwary has been a member of the NYPD for nine years and has been a subject in two prior CCRB cases involving three FADO allegations, none of which have been substantiated. Only one of these allegations was for physical force, which was exonerated.
- This is the first CCRB complaint filed by § 87(2)(b) (see Board Review #6).

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
[REDACTED]
[REDACTED]

§ 87(2)(g)

• § 87(2)(g)

Allegation A—Force: PO Rhea Tiwary used physical force against § 87(2)(b)

It is undisputed that prior to entering the office to obtain her identification as requested, § 87(2)(b) told PO Tiwary that there was not enough room to pass through because she was partially blocking it. § 87(2)(b) (see Board Review #8) stated that she eventually complied with PO Tiwary's instructions to pass through but denied ever bumping or making contact with any part of PO Tiwary's body during that process. § 87(2)(b) alleged that immediately thereafter, PO Tiwary punched her in the back, though upon review of the video footage she later believed that PO Tiwary forcefully elbowed her back before grabbing her arm and spinning her around. § 87(2)(b) further claimed that PO Tiwary then used one shoulder to push her forward, causing her to stumble towards a desk on which she was able to steady herself. As a result of the strike to her back, she sustained pain and soreness that persisted for over two weeks following the incident, as well as bruising that was no longer present at the time of her interview. Although medical records from the hospital are still pending, § 87(2)(b)

Furthermore, § 87(2)(b) stated to the CCRB that she was not treated for anything at the hospital or prescribed any medication.

§ 87(2)(b) (see Board Review #9) stated that § 87(2)(b) did not make any contact with PO Tiwary as she passed through the doorway. However, she stated that as § 87(2)(b) walked through, her knees buckled and she stumbled. § 87(2)(b) stated that when she asked § 87(2)(b) what was wrong, she replied that she could not breathe and needed to sit down. However, § 87(2)(b) alleged that PO Tiwary subsequently grabbed her by the wrist and spun her around before handcuffing her and telling her that she could not sit down. § 87(2)(b) reported that she did not see any additional force used against § 87(2)(b) until watching the video footage, on which she saw PO Tiwary push § 87(2)(b) into the wall, as discussed below. § 87(2)(b) (see Board Review #10) similarly stated that § 87(2)(b) made no contact with PO Tiwary as she passed through the door. However, § 87(2)(b) maintained that immediately after entering the room, PO Tiwary pushed § 87(2)(b) from behind and handcuffed her without provocation. § 87(2)(b) further alleged that soon after § 87(2)(b) was handcuffed but before she was removed from the room, PO Tiwary elbowed her in the back and head-butted one of her shoulders.

§ 87(2)(g) PO Tiwary (see Board Review #11) maintained that as § 87(2)(b) passed through the door, she used her shoulder to bump against PO Tiwary's chest, which she interpreted as a threatening gesture. Deciding to arrest § 87(2)(b) PO Tiwary stated that she removed her handcuffs but did not recall whether she grabbed § 87(2)(b) at that point. However, she denied ever elbowing § 87(2)(b) in the back, pushing her, or using any other force against § 87(2)(b). PO Kenton (see Board Review #12) stated that § 87(2)(b) brushed against PO Tiwary as she entered the room, though it was not an aggressive bump or push. Nevertheless, he

maintained that PO Tiwary subsequently removed her handcuffs, causing § 87(2)(b) to turn around and question why she would be arrested. PO Kenton did not recall if PO Tiwary made immediate physical contact with § 87(2)(b) before handcuffing her, but he did not see PO Tiwary ever elbow § 87(2)(b) in the back, push her with her shoulder, or use any other force against her.

The surveillance footage confirms at <01:09> that as § 87(2)(b) passes through the office door, PO Tiwary abruptly swivels and motions towards her back, at which point § 87(2)(b) quickly turns around to face her. Given the angle of the camera and the low image quality, it is unclear whether § 87(2)(b) ever made contact with PO Tiwary's chest or what contact PO Tiwary made with § 87(2)(b)'s back. As PO Tiwary pulls § 87(2)(b)'s hands behind her back, they move off screen with no push or shoulder maneuver shown. The three-second video taken on § 87(2)(b)'s cell phone shows PO Tiwary stating, "You're not gonna size me up. You're not gonna push me like that."

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED] Therefore, it is recommended that **Allegation A** be closed as *Unsubstantiated*.

Allegation B—Force: PO Rhea Tiwary hit § 87(2)(b) against a wall.

§ 87(2)(b) stated that when she initially entered the office to retrieve her identification, she used the door to balance herself because she has suffered from § 87(2)(b). She maintained that as a result of holding it, the door unintentionally closed behind her, though she was not attempting to shut PO Tiwary out of the office. § 87(2)(b) also acknowledged that although her identification was in the office, she exited without retrieving it in order to tell § 87(2)(b) to call the church clergy. § 87(2)(b) stated that, in total, PO Tiwary requested her identification as many as fifty times throughout the incident. She maintained that after initially exiting the office, she was unable to retrieve her identification because PO Tiwary was standing in the doorway. She alleged that after being handcuffed, PO Tiwary pushed her towards the door, causing her to collide into the doorframe and adjoining glass window. § 87(2)(b) did not allege any injury as a result, and she denied resisting in any way.

§ 87(2)(b) corroborated that PO Tiwary pushed § 87(2)(b) forward, causing her to collide into the glass wall. However, she stated that it was a result of her being elbowed and head-butted from behind. Meanwhile, § 87(2)(b) stated that she did not originally see any force used against § 87(2)(b).

§ 87(2)(b) until watching the surveillance video showing her pushing § 87(2)(b) into the doorway.

PO Tiwary also maintained that the first time § 87(2)(b) entered the office, she purposefully pulled the door closed behind her in what PO Tiwary believed to be an attempt to shut her out of the office. She also maintained that § 87(2)(b) repeatedly refused to retrieve her identification, which she saw as an attempt to delay while the other civilians called for church staff to arrive, and that § 87(2)(b) resisted being handcuffed by pulling her arms away and shifting her body weight around. Accordingly, PO Tiwary denied using any forward momentum to push § 87(2)(b) into the doorframe or glass wall, and instead maintained that § 87(2)(b) lunged forward and careened into the wall using her own momentum. Similarly, PO Kenton maintained that he did not see PO Tiwary push § 87(2)(b) forward and believed § 87(2)(b) collided with the wall based on her own momentum.

At <00:04> on the surveillance footage, § 87(2)(b) is clearly seen allowing § 87(2)(b) to enter a half open door before entering the office herself and closing the door behind her to the point where it is almost completely shut. In response, PO Tiwary quickly swings the door fully back open. Immediately thereafter, § 87(2)(b) exits the office without retrieving her identification, but at <00:25>, she reenters the office without anyone blocking her from doing so. At <00:35> seconds, she then exits the office again despite both officers fully blocking her path, causing them to step to the side as she passes. After she eventually returns to the office, PO Tiwary moves to handcuff her, as discussed above. Although both PO Tiwary and § 87(2)(b) move off screen during the handcuffing process, it is clear that § 87(2)(b) quickly flails one arm out of PO Tiwary's grip at <01:18>, just before moving completely out of the frame. At <01:25>, § 87(2)(b) returns to the frame as she stumbles into the doorframe and glass window, with PO Tiwary holding her handcuffed arms from behind. Although it is not clear whose momentum caused the collision, the video does show § 87(2)(b) subsequently leaning forward as PO Tiwary leans backward in an attempt to pull her up and move her out the doorway. At <01:33>, PO Tiwary steps partially out of the doorway while still holding onto § 87(2)(b)'s arms and motions with her hand out the door multiple times. Having still not moved by <02:05>, PO Tiwary steps back into the office, and with the help of PO Kenton, escorts § 87(2)(b) to the right of the office out of the frame.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted] Therefore, it is recommended that **Allegation B** be closed as *Unfounded*.

Squad: ____

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date